

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUPP049322: ISABELLA MURILLO vs STATE OF CALIFORNIA, et al.

09/15/2026 in Department 42

Motion to Compel TO COMPEL FURTHER RESPONSES TO DEFENDANT'S FIRST SET OF FORM AND SPECIAL INTERROGATORIES AND FOR PRODUCTION OF DOCUMENTS, REQUEST FOR ORDER AWARDING MONETARY SANCTIONS AGAINST PLAINTIFF ISABELLA MURILL AND ATTORNEY

Motion: People of the State of California, Acting by and through the Department of Transportation's Motion to Compel Further Responses to Defendant's First Set of Form and Special Interrogatories and for Production of Documents; Request for Order Awarding Monetary Sanctions Against Plaintiff Isabella Murillo and Attorney Marc Anderson in the Sum of \$8,850.00 (*Opposed*)

Tentative Ruling:

Defendant/Cross-Complainant People of the State of California, acting by and through the Department of Transportation's Motion to Compel Further Responses to Defendant's First Set of Form and Special Interrogatories and for Production of Documents; Request for Order Awarding Monetary Sanctions Against Plaintiff Isabella Murillo and Attorney Marc Anderson in the Sum of \$8,850.00 is DENIED as untimely.

Code of Civil Procedure sections 2030.300(c) and 2031.310(c) provide that, unless notice of a motion to compel further responses is given within 45 days after service of the verified responses, or on or before a specific later date agreed to in writing, the propounding party "waives any right" to compel further responses. The deadline is mandatory. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 136-139; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 683, 685.) A court may not entertain a belated motion to compel further responses. (*Vidal Sassoon, supra*, at p. 683.)

Here, the parties agreed in writing to extend Defendant's deadline to July 24, 2026. Defendant's counsel specifically requested an extension of "Caltrans time to file our MTC to July 24th instead," and Plaintiff's counsel agreed. Defendant's own moving papers likewise state that the parties extended Defendant's deadline for the motion to compel to July 24, 2026.

Defendant did not file a valid motion by that date. Defendant acknowledges in reply that its July 24 submission was rejected by the clerk because of a "scrivener's error for the hearing date," and that the motion was thereafter filed on July 27, 2026. The proof of service accompanying the filed motion likewise states that the notice and motion were served on July 27, 2026.

Defendant argues that it nevertheless emailed the motion papers to Plaintiff on July 24, such that Plaintiff had actual notice and suffered no prejudice. The Court is not persuaded. A notice of motion must state, among other things, when the motion will be made. (Code Civ. Proc., § 1010.) In *Golf & Tennis Pro Shop*, the Court of Appeal held that section 2030.300(c) requires adequate notice to be given within the statutory period to both the opposing party and the court.

A deficient notice that is later corrected does not preserve the statutory deadline; the later correction is “too little, too late.” (*Golf & Tennis Pro Shop*, supra, at pp. 138-139.)

Golf & Tennis Pro Shop is instructive. There, the moving party electronically transmitted its notice to opposing counsel and submitted it for electronic filing on the final day, but the record did not establish that the court accepted the filing until the following day. The Court of Appeal treated the later date as the filing date and upheld denial of the motion as untimely. (*Golf & Tennis Pro Shop*, supra, at pp. 136-137.) Here, Defendant’s position is weaker because it affirmatively acknowledges that its July 24 submission was rejected as a result of an erroneous hearing date attributable to Defendant, rather than because of a technical malfunction in the court’s electronic filing system.

Defendant also relies on *Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1288-1289 and *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697 for the proposition that opposition to a motion may waive defects in notice absent prejudice. Defendant expressly makes that argument in reply. These authorities do not permit the Court to disregard the mandatory waiver provisions of sections 2030.300(c) and 2031.310(c). The issue here is not merely whether Plaintiff waived an ordinary defect in motion notice. The question is whether Defendant timely exercised a statutorily limited right to compel further responses. Once the statutory period expired without adequate notice, the discovery statutes provide that Defendant waived that right. *Golf & Tennis Pro Shop*, decided after both *Reedy* and *Carlton*, expressly requires adequate notice to both the adverse party and the court within the applicable deadline. (*Golf & Tennis Pro Shop*, supra, at pp. 138-139.)

The Court therefore lacks discretion simply to excuse the late motion based upon actual notice, lack of prejudice, or equitable considerations. As *Vidal Sassoon* states, the statutory deadline is “mandatory and the court may not entertain a belated motion to compel.” (*Vidal Sassoon*, supra, at p. 683.) The court there further held that an order granting an untimely motion was in excess of the trial court’s jurisdiction. (*Id.* at p. 685.)

Accordingly, because Defendant did not timely give legally adequate notice by the parties’ agreed July 24, 2026 deadline, Defendant waived its right to compel further responses under Code of Civil Procedure sections 2030.300(c) and 2031.310(c). The motion is denied. The Court does not reach the parties’ disputes concerning the adequacy of Plaintiff’s responses, Plaintiff’s supplemental responses, relevance, privacy, overbreadth, or whether Defendant demonstrated good cause for its document demands, all of which appear to be moot in any event.

Defendant’s request for monetary sanctions in the amount of \$8,850 is also DENIED.

Plaintiff to give notice.